

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ANGEL PADILLA,

Plaintiff,

-against-

Plaintiff designates
Bronx County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

THE CITY OF NEW YORK and
BRIAN ESTEVEZ,

Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 4, 2024

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

-The City of New York, c/o NYC Corporation Counsel, 100 Church Street, New York, NY 10007

-P.O. Brian Estevez, c/o NYPD 43rd Precinct, 900 Fteley Ave., Bronx, NY 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

ANGEL PADILLA,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
BRIAN ESTEVEZ,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

1. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
2. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).
3. That at all times herein mentioned, defendant P.O. Brian Estevez (hereinafter “Estevez”) was and is an officer employed by the NYPD.
4. That at all times herein mentioned, Estevez was acting within the course and scope of his employment with the NYPD.
5. That at all times herein mentioned, Estevez was acting under color of state law.
6. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with defendants on behalf of plaintiff; that this action was not commenced

until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

THE FACTS

7. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

8. That on or about June 12, 2023, at or around the location of 640 Barretto Street, Bronx, NY, various NYPD officers, including but not limited to Estevez, after having purportedly observed plaintiff operating a motor bike in violation of traffic regulations, physically seized and arrested plaintiff.

9. That on or about June 13, 2023, Estevez then initiated a criminal prosecution of plaintiff by executing a Criminal Court Complaint in which he charged plaintiff with various felonies and misdemeanors, including but not limited to criminal possession of a weapon and criminal possession of stolen property.

10. That Estevez did not have probable cause to believe that plaintiff was guilty of any of the crimes with which he charged him, and plaintiff in fact was not guilty of any of those crimes.

11. That in support of the criminal prosecution, Estevez also made material representations and accusations against plaintiff in police paperwork and to the district attorney that were false, and that Estevez knew to be false.

12. That among the false, material representations and accusations made by Estevez were that: (i) he observed plaintiff operating a 2019 Red Honda Motor Bike that Estevez later

determined to be stolen; (ii) he observed what appeared to be a rectangular object in a fanny pack that was worn by plaintiff; (iii) he recovered a firearm within ten feet of plaintiff.

13. That these false representations and accusations were material in nature, and were designed to, and likely would have the effect of, influencing a judge or jury as to plaintiff's guilt.

14. That as a consequence of the false charges and accusations made by Estevez, plaintiff suffered a significant deprivation of his liberty, including initially being incarcerated for a period of approximately two days and then being required to appear in court on multiple occasions to defend against the false criminal charges brought against him.

15. That as a further consequence of the false charges and accusations made by Estevez, plaintiff was denied and deprived of the custody of his minor children for a period of months.

16. That on or about December 19, 2023, all criminal charges against plaintiff were dismissed, and the criminal proceeding terminated favorably to plaintiff.

17. That the aforesaid actions of Estevez were intentional and malicious in nature.

18. That as a further result of the foregoing, plaintiff sustained severe psychological and emotional injuries, endured and continues to endure emotional pain and suffering and loss of enjoyment of life, incurred and will continue to incur medical and healthcare related expenses and other economic loss, and has been otherwise damaged.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under New York State Law)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the actions of Estevez constitute a malicious prosecution of plaintiff, for which Estevez is liable under New York State law and for which the City is vicariously liable under the doctrine of *respondeat superior*.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST ESTEVEZ
(42 U.S.C. § 1983 Arising out of Fourth and Fourteenth Amendment Violations)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the actions of Estevez in maliciously prosecuting plaintiff constitute an illegal and unreasonable seizure of plaintiff, in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE ESTEVEZ
(42 U.S.C. § 1983 Arising Out of Denial of Right to Fair Trial)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforesaid actions of Estevez in knowingly making false representations and accusations against plaintiff constitute a denial of plaintiff's right to a fair trial in violation of the Fifth, Sixth, and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

39. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in amounts that exceed the

jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against Estevez, and attorney's fees against Estevez pursuant to 42USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
September 4, 2024

Yours, etc.

SIVIN, MILLER & ROCEH, LLP

By Edward Sivin

Edward Sivin

Attorneys for plaintiff

20 Vesey St., Suite 1400

New York, NY 10007

(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
September 4, 2024

Edward Sivin
EDWARD SIVIN